

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 674

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO DISCONTINUANCE OF TELECOMMUNICATION SERVICE; AMENDING SECTION 62-612, IDAHO CODE, TO REVISE PROVISIONS REGARDING RESTRICTIONS ON WITHDRAWAL OR DISCONTINUANCE OF SERVICE AND TO MAKE TECHNICAL CORRECTIONS; AMENDING CHAPTER 6, TITLE 62, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 62-612A, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING DISCONTINUANCE OF SERVICE PURSUANT TO FEDERAL COMMUNICATIONS COMMISSION PROCEDURES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 62-612, Idaho Code, be, and the same is hereby amended to read as follows:

62-612. RESTRICTION ON WITHDRAWAL OR DISCONTINUANCE OF SERVICE. (1) A telephone corporation subject to this chapter ~~which that~~ provides basic local exchange or message telecommunication service, may not withdraw or otherwise discontinue such service to a local exchange area unless: ~~one or more alternative telephone corporations are furnishing the respective telecommunication service or equivalent service to the customers in such local exchange area at the time such service is withdrawn or otherwise discontinued.~~

(a) Such discontinuance is in accordance with the provisions of section 62-612A, Idaho Code; or

(b) One (1) or more alternative telephone corporations are furnishing the respective telecommunication service or equivalent service to the customers in such local exchange area at the time such service is withdrawn or otherwise discontinued.

(2) A telephone corporation proposing to withdraw or otherwise discontinue ~~the services set forth in~~ service to a local exchange area pursuant to subsection (1) (b) of this section ~~to a local exchange area~~ shall file a notice of such withdrawal or discontinuance of service with the commission and shall publish a notice of such withdrawal in a legal newspaper circulated within the local exchange area, and provide such other reasonable notice as may be required by the commission.

(3) Any person or telephone corporation affected by a withdrawal or discontinuance of such services by a telephone corporation subject to this chapter, may, within thirty (30) days from the date of publication of the notice, apply to the commission to determine whether such withdrawal or discontinuance of service is authorized pursuant to this section.

SECTION 2. That Chapter 6, Title 62, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 62-612A, Idaho Code, and to read as follows:

1 62-612A. DISCONTINUANCE OF SERVICE PURSUANT TO FEDERAL COMMUNICA-
2 TIONS COMMISSION PROCEDURES. If the federal communications commission
3 permits a telephone corporation to discontinue service under 47 U.S.C.
4 214(a) or other applicable provisions of federal law, the Idaho public
5 utilities commission shall recognize and adopt the federal communications
6 commission's discontinuance findings.

7 SECTION 3. An emergency existing therefor, which emergency is hereby
8 declared to exist, this act shall be in full force and effect on and after
9 July 1, 2026.